

January 12, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0002298 WELLS FARGO BANK, N.A. vs. VICTORIA BOLSHAKOFF, an individual

No appearances required. On the Court's own motion, the default prove up hearing is continued to February 9, 2026 at 1:30 p.m. in Dept. A. Plaintiff is to provide notice to the defaulted defendant as Plaintiff is seeking an order according to proof. Thus, even a defaulted defendant is entitled to notice and an opportunity to be heard as to any matter not specifically requested in a complaint. In addition, Plaintiff was ordered to provide notice to Defendant of the previously vacated trial date, yet there is no indication in the file such occurred. Accordingly, Plaintiff is ordered to file a proof of service evidencing Defendant has been served with the following: Notice of Prove Up Hearing; all Declarations in support of requested orders; a proposed Judgment.

2. CL0002884 Bank of America, N.A. vs. Larrisa Ann Cassella

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over seven (7) months and the Court previously ordered Plaintiff to file a proof of service, application to serve by publication, or request for dismissal of defendant in advance of this order to show cause date. Absent good cause being shown, the Court intends to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for February 20, 2026 at 11:00 a.m.

3. CL0003155 Capital One N.A. vs. John R Dasilva

On the Court's own motion, the OSC as to Plaintiff is DISMISSED. Plaintiff has now filed a proof of service evidencing service of the summons and complaint on the sole named defendant. The trial date remains as set.

4. CU0000485 Hicks, Jennifer et al v. Sokolow, Sonia et al

Appearances required. The Court is aware Plaintiffs have set a prove up hearing and filed multiple documents in relation to same. However, there is no proof of service filed evidencing Defendant Sokolow has been served with notice of prove up hearing, the various documents Plaintiffs seek to have the Court consider at the time of hearing or the proposed judgment. In addition, the Court wishes to clarify with Plaintiffs any issues related to the fact they have settled these claims with other named defendants such that there may be double recovery issues. In addition, the proposed Judgment does not seek any recovery. Finally, there remain DOE defendants. Absent clarifying and rectifying these issues, the Court is inclined to vacate the prove up hearing.

5. CU0001398 Brianna Vigrass v. Avian Borden, et al.

The hearing is vacated, yet the matter remains on calendar on January 26, 2026 at 1:30 p.m. in Department A to allow counsel for Petitioner to file a Second Amended Petition prior to said hearing date. If the Second Amended Petition is filed and confirmed by the Court in advance of the hearing date, the continued hearing date may be vacated.

6. CU0001662 Pankaj Gupta vs. Bamboo Ide8 Insurance Services et al

- Plaintiff's Motion to Disqualify Counsel

Plaintiff's motion to disqualify counsel for Defendants' Bamboo Ide8 Insurance Services ("Bamboo") and Sutton National Insurance Company, Inc. ("Sutton") is denied.

The Court finds Plaintiff lacks standing to bring this motion. Although trial courts have discretion to disqualify an attorney upon motion, case law makes clear that the moving party must have standing before such discretion is proper.

"A trial court's authority to disqualify an attorney derives from the power inherent in every court to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 (internal citations omitted). "Disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility. The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." *Id.* (internal citations omitted).

A "standing" requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356. In other words, the general rule is that motions to disqualify counsel by someone other than a client or former client are not permitted. "[N]o exception exists that permits a non-client without a legally cognizable interest to disqualify opposing counsel." *Id.* at 1354. "...absent an attorney-client relationship, the moving party must have an expectation of confidentiality." *Id.* at 1356, citing *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829. "Thus, some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information. *Id.*, citing *Dino v. Pelayo* (2006) 145 Cal.App.4th 347.

At bar, Plaintiff has not demonstrated he has standing with respect to the instant motion. Moreover, the Court does not find a legally cognizable interest harmed by Defendants' counsel's joint representation exists. While Plaintiff may dislike the joint representation and the varied positions by counsel that may be taken with respect to each defendant, such does not rise to the level of mandating disqualification. It is notable, neither defendant has filed an answer at this stage. Thus, the assertions by Plaintiff as to inconsistent and irreconcilable positions resulting in an inability for this matter to move forward in a fair and just fashion has not occurred and may